HEADNOTE

"1. By using the wording "In the assessment of the technically qualified court" in the grounds for the decision, the court expresses that it is specially equipped and qualified to assess the arguments and evidence presented in a technically complex matter. This cannot be understood to mean that the court used the personal opinion of one or more of its judges as evidence.
2. The assessment of the arguments and evidence presented by the parties is carried out by the court hearing the case and is not subject to review in the context of an application for review.
3. R.118.5 RoP (in Part 1 of the Rules of Procedure concerning proceedings before the Court of First Instance), which provides that the court shall, as a matter of principle, decide on the obligation to bear the costs of the proceedings, does not preclude the Court of Appeal from deciding on the allocation of costs in summary proceedings. As is apparent from Article 32(1)(c) UPCA, claims for provisional measures and protective measures pursuant to Article 62 UPCA are independent claims, and with the decision in the appeal proceedings, these proceedings are concluded. There is thus a legal basis for the cost decision in R.242.1 RoP."

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Procedural order

PATENT
EP 4108782
COMPOSITIONS AND METHODS FOR ANALYTE DETECTION

KEYWORDS
Resumption of proceedings (R.245 RoP)
Cost decision basis (R.242.1 RoP)

Article 32 Competence of the Court

SUMMARY
The Court of Appeal in Luxembourg issued a procedural order concerning an application for provisional measures. The patent at issue relates to compositions and methods for analyte detection. According to the headnotes of the decision, the court's statement that it is "technically qualified" expresses its special competence in complex technical matters. This does not mean the court relied on any judge's personal opinion as evidence. Furthermore, the parties' arguments and evidence are assessed by the court hearing the case and cannot be reviewed in a separate review application. Additionally, the Court of Appeal may decide on cost allocation in summary proceedings even though the first instance rules address cost decisions generally. This is possible because claims for provisional measures under the UPC Agreement are independent proceedings that conclude with the appeal decision. Therefore, there is a legal basis for the Court of Appeal to make cost determinations under the applicable rules of procedure.